

G.O.Ms.No.479, G.A. (Spl.C) Dept., dt.28.10.2005 regarding orders on empowering the A.P.Vigilance Commissioner to give protection to Whistleblowers.

Subject Heading : Whistleblowers Protection – Empowering the A.P. Vigilance Commissioner to give protection to Whistleblowers on the similar lines of empowering the Central Vigilance Commission by Government of India – Orders – Issued.

Read :

Ministry of Personnel, Public Grievances and Pensions, GoI, Resolution No.371/12/2002-AVD-III, dt.21.04.2004.

O R D E R :

The Supreme Court of India while hearing W.P.(C) No.539/2003 a Public Interest Litigation had directed the Government of India to take statutory measures for protection of whistleblowers.

2. The Government of India in the reference read above have issued executive instructions empowering the Central Vigilance Commission (CVC), pending legislation to give protection to Whistleblowers, as per the direction of Supreme Court of India.

3. Accordingly, the Government of Andhra Pradesh after careful examination of the matter, hereby authorize the A.P. Vigilance Commissioner as the designated agency to receive written or disclosure on any allegation of corruption or of misuse of office by any employee of the State Government or of any corporation established by or under any State Act, Government Companies, Societies or local authorities owned or controlled by the State Government, on the same analogy of the Government of India instructions. The disclosure or complaint shall contain as full particulars as possible and shall be accompanied by supporting documents or other material.

4. The designated agency may, if it deems fit call for further information or particulars from the persons making the disclosure. If the complaint is anonymous, the designated agency shall not take any action in the matter.

5. Notwithstanding anything contained in the Official Secrets Act, 1923, any public servant other than those referred to clauses (a) to (d) of Article 33 of the Constitution of India or any other person including any non-governmental organization may make a written disclosure to the designated agency.

6. If the complaint is accompanied by particulars of the person making the complaint, the designated agency shall take the following steps:-

- (i) xxx
- (ii) The identity of the complainant will not be revealed unless the complainant himself has made the details of the complaint either public or disclosed his identify to any other office or authority.

- (iii) After concealing the identity of the complainant, the designated agency shall make, in the first instance discreet inquiries to ascertain if there is any basis of proceeding further with the complaint. For this purpose, the designated agency shall devise an appropriate machinery.
- (iv) Either as a result of the discreet inquiry, or on the basis of the complaint itself without any inquiry, if the designated agency is of the opinion that the matter requires to be investigated further, the designated agency shall officially seek comments / or explanation from the Head of the Department of the concerned organization or office. While doing so, the designated agency shall not disclose identity of the informant and also shall request the concerned Head of the organization to keep the identity of the informant secret, for any reason, the concerned Head comes to know the identity.
- (v) After obtaining the response of the concerned organization, if the designated agency is of the opinion that the investigations reveal either misuse of office or substantiate allegations of corruption, the designated agency shall recommend appropriate action to the concerned Government Department or Organization. Those shall, inter alia, include following:-
 - a. Appropriate proceedings to be initiated against the concerned Government servant.
 - b. Appropriate administrative steps for redressing the loss caused to the Government as a result of the corrupt act or misuse of office, as the case may be.
 - c. Recommend to the appropriate authority / agency initiation of criminal proceedings in suitable cases, if warranted by the facts and circumstances of the case.
 - d. Recommend taking of corrective measures to prevent recurrence of such events in future.

7. For the purpose of making discreet inquiry or obtaining information from the concerned organization, the designated agency shall be authorized to call upon the Crime Investigation Department (CID) or the police authorities, as considered necessary, to render all assistance to complete the investigation pursuant to the complaint received.

8. If any person is aggrieved by any action on the ground that he is

9. Either on the application of the complainant, or on the basis of the information gathered, if the designated agency is of the opinion that either the complainant or the witnesses need protection, the designated agency shall issue appropriate directions to the concerned Government authorities.

10. The machinery evolved herein shall be in addition to the existing mechanisms in place. However, secrecy of identity shall be observed, only if the complaint is received under this machinery.

11. In case the designated agency finds the complaint to be motivated or vexatious, the designated agency shall be at liberty to take appropriate steps.

12. The designated agency shall not entertain or inquire into any disclosure;

- a) In respect of which a formal and public inquiry has been ordered under the Public Servants Inquiries Act, 1850; or
- b) In respect of a matter which has been referred for inquiry under the Commissions of Inquiry Act, 1952.

13. In the event of the identity of the informant being disclosed in spite of the designated agency's directions to the contrary, the designated agency is authorized to initiate appropriate action as per extant regulations against the person or agency making such disclosure.

14. The machinery created herein shall operate till A.P. Legislative Assembly passes law on the subject.

15. The Secretary, A.P. Vigilance Commission is requested to take necessary further action.